THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention o n the International Maritime Organization concerning the functions of the Marine Environ ment Protection Committee conferred upon it by international conventions for the prevent ion and control of marine pollution, NOTING article 16 of the International Convention f or the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1973 Co nvention") and article VI of the Protocol of 1978 relating to the International Conventi on for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "197 8 Protocol") which together specify the - of 1978 relating to the International Conventi on for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "197 8 Protocol") which together specify the amendment procedure of the 1978 Protocol and con fer upon the appropriate body of the Organization the function of considering and adopti ng amendments to the 1973 Convention, as modified by the 1978 Protocol (MARPOL 73/78), H AVING CONSIDERED draft amendments to Annexes I, II, IV and Vof MAR POL 73/78, 1.

ADOPTS, in accordance with article 16(2)(d) of the 1973 Convention, the amendments to An nexes I, II, IV and V of MARPOL 73/78, the text of which is set out in the annex to the present resolution; 2.

DETERMINES, in accordance with article 16(2)(f)(iii) of the 1973 Convention, that the am endments shall be deemed to have been accepted on 1 February 2013 unless, prior to that date, not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50 per cent of the gross tonnage of the world's merchant fleet, have communicated to the Organization their objection to the amendments; - which constitute not less than 50 per cent of the gross tonnage of the world's merchant fleet, have communicated to the Organization their objection to the amendments; 3.

INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of the 1973 Co nvention, the said amendments shall enter into force on 1 August 2013 upon their accepta nce in accordance with paragraph 2 above; 4.

REQUESTS the Secretary-General, in conformity with article 16(2)(e) of the 1973 Conventi on, to transmit to all Parties to MAR POL 73/78 certified copies of the present resoluti on and the text of the amendments contained in the annex; 5.

REQUESTS FURTHER the Secretary-General to transmit to the Members of the Organization wh ich are not Parties to MARPOL 73/78 copies of the present resolution and its annex.

RESOLUTION MEPC.216(63) Adopted on 2 March 2012